

IN THE LAHORE HIGH COURT, LAHORE.

Case No. W.P. No.37228 of 2016

JUDGMENT

Respondents by: Mr. Muhammad Wakeel Hassan, Advocate.
Muhammad Buksh Ansari, Town Municipal
Officer, Aziz Bhatti Town, Lahore.

2. The facts succinctly revealed from the petition are that the Petitioners are working since more than 20 years against their respective posts from the date of their appointments in the Respondents Department. It is alleged by the Petitioners that when the Petitioners were not regularized, they filed Complaints before Presiding Officer, Punjab Labour Court No.1, Lahore through NIRC praying therein regularization which was accepted vide judgment dated 06.05.2016. It is further stated that on non-compliance of the said judgment, the Petitioners filed contempt petition, during which the Department regularized certain Work Charge Employees but

denied the Petitioners against which the Petitioners filed representations. It is further alleged that against the judgment dated 06.05.2016, the Respondent No.3 filed appeal before Labour Appellate Tribunal which accepted the appeal vide the impugned judgment to the extent of the Petitioners and dismissed their grievance petitions.

3. In compliance of order dated 28.11.2016, report was filed on behalf of the Respondents No.2.

4. Learned counsel for the Petitioners submitted that the impugned judgment is against the law as the same has been passed without taking into consideration the available record. Learned counsel further contended that the learned Labour Appellate Tribunal while passing the impugned judgment has ignored the provisions of initial appointment to Civil Post (Relaxation of Upper Age Limit) Rules, 1993 (the “1993 Rules”) and maximum age limit as prescribed in the Recruitment Rules as well as the Punjab Local Councils Servants (Service) Rules, 1997 (the “1997 Rules”), and as such the same is liable to be set aside. Learned counsel further argued that the learned Labour Appellate Tribunal has ignored the criteria, through which the Petitioners were to be absorbed, laid down by NIRC on 04.02.2010 *in toto*. Learned counsel also maintained that when, at the time of initial recruitment of the Petitioners, the alleged fact of over-age was not raised by the Respondents now after the Petitioners have rendered more than 20 years of service, it cannot be made basis to decline the Petitioners’ absorption. Learned counsel further argued that if the Petitioners are discontinued from service after such a long period, they would not be able to appoint in any other Department, hence keeping in view the longstanding experiment of the Petitioners, they be ordered to be permanently inducted against their respective posts. Learned counsel for the Petitioners also added that similarly placed person i.e. Respondents No.4 to 6/Work Charge Employees, have been regularized by the Department despite the fact that they were touching the upper age limit of 33 to 37 years, however the Petitioners have been debarred to enjoy the similar treatment, as such a

discriminatory attitude is being adopted towards the case of the Petitioners. Learned counsel further argued that the impugned judgment has been passed in sheer violation of the latest pronouncements of the apex Court. In support of his contentions learned counsel placed reliance on the case titled as **Irshad Ali and 78 others v. Province of Sindh through Secretar Local Government Department, Karachi and 4 others** (2015 PLC (C.S.) 293), **Province of Punjab through Secretary Communication and Works Department and others v. Ahmad Hussain** (2013 SCMR 1547) & **Ikram Bari and 524 others v. National Bank of Pakistan through President and another** (2005 SCMR 100).

5. Learned counsel for the Respondent No.2 vehemently contested the arguments advanced by the learned counsel for the Petitioners and contended that the impugned judgment has been passed strictly in accordance with law and line with the verdict of the apex Court. The learned counsel pointed out that the Petitioners No. 5 and 7 have no right to agitate their matter before this Court as the Petitioner No. 5, prior to this, never approached the forum concerned whereas the case of Petitioner No.7 is still pending adjudication before the Labour Court. Learned counsel further contended that in the impugned judgment grievance petitions of the Petitioners have rightly been dismissed while accepting the appeal as being over-age employees. Learned counsel also contended that the case of the Petitioners for regularization had been regretted by the Competent Authority due to non-fulfilment of over-age criteria. Learned counsel prays for dismissal of the instant petition as the Petitioners have failed to show any illegality in the impugned judgment.

6. From the perusal of impugned judgment dated 27.09.2016, it transpired that the Punjab Labour Appellate Tribunal, Lahore while accepting the appeal of the Respondent No.3 to the extent of the petitioners, rejected the grievance petitions of the Petitioners simply stating that the Petitioners/Employees are over-age. Neither the Punjab Labour Appellate Tribunal, Lahore discussed in detail the Petitioners' case of over-age nor has passed a speaking order in this

regard by elaborating the 1997 Rules and the 1993 Rules and the judgments of the Honourable Supreme Court **Province of Punjab through Secretary Communication and Works Department and others v. Ahmad Hussain , supra & Ikram Bari and 524 others v. National Bank of Pakistan through President and another , supra.** It is further observed that the impugned judgment is silent regarding finding on the issue of discrimination.

7. The Honorable Supreme Court, in the case titled **Muhammad Iqbal Chaudhry and another v. Secretary, Ministry Of Industries And Production, Government Of Pakistan and others (2004 PLC (C.S.) 896)** at Para 3, has emphasized on the requirement of passing a speaking order by public authorities in following words:

“3. It may be noted that the forums seized with the judicial matters are required to pass such a speaking judgment that it should give an impression to readers that the legal and factual aspects of the, case which were raised before it for the purpose of decision have been considered and decided in the light of recognized principles of law on the subject instead of disposing of in slipshod manner.”

8. Further, in the case of **Mollah Ejahar Ali v. Government Of East Pakistan and Others (PLD 1970 Supreme Court 173)**, the Honourable Supreme Court has beautifully explained the need and importance for passing a speaking order by stating that:

"There is no doubt that the High Court's order which is unfortunately purfunctory gives the impression of a hasty off-hand decision which, although found to be correct in its result, is most deficient in its content. if a summary order of rejection can be made in such terms, there is no reason why a similar order of acceptance saying "there is considerable substance in the petition which is accepted", should not be equally blessed. This will reduce the whole judicial process to authoritarian decrees without the need for logic and reasoning which have always been the traditional pillars of judicial pronouncements investing them with their primary excellence of propriety and judicial balance. Litigants who bring their disputes to the law Courts with the

incidental hardships and expenses involved do expect a patient and a judicious treatment of their cases and their determination by proper orders. A judicial order must be a speaking order manifesting by itself that the Court has applied its mind to the resolution of the issues involved for their proper adjudication. The ultimate result may be reached by a laborious effort, but if the final order does not bear an imprint of that effort and on the contrary discloses arbitrariness of thought and action, the feeling with its painful results, that justice has neither been done nor seems to have been done is inescapable. When the order of a lower Court contains no reasons, the appellate Court is deprived of the benefit of the views of the lower Court and is unable to appreciate the processes by which the decision has been reached."

9. Similarly, the honorable Courts in various judgments, has directed several authorities to adhere to the above-mentioned principle for passing a speaking order with reasons and after keeping in view the facts and circumstances of the case, applicable law as well as precedence law, if available. (Rel. **Town Committee, Piplan v. Muhammad Hanif and others (2008 SCMR 723)**)

10. It is also worth mentioning that it is the inalienable right of every citizen to be treated in accordance with law as envisaged by Article 4 of the Constitution. Hence, it is the duty and obligation of every public functionary, including the Punjab Labour Appellate Tribunal, to act within the four corners of the mandate of the Constitution and Law, and pass a speaking order. Importantly, the Punjab Labour Appellate Tribunal was obliged to decide appeal and redress grievances of citizens and/or civil servant after application of mind with reasons vide a speaking order, manifesting by itself that Court applied its mind to resolution of all issues involved.

11. However, such an impugned judgment dated 27.09.2016 does not constitute a speaking order and does not disclose a proper application of mind of the Punjab Labour Appellate Tribunal to the merits of the case that were before it. Further, the impugned judgment has neither discussed all the arguments of the parties, nor has disclosed the reasoning and justification for coming to such

conclusion, as highlighted above. Hence, the impugned judgment suffers from infirmity and is liable to be set aside.

12. It is noteworthy that this Court has not expressed any opinion as to the respective merits of the opposing contentions advanced by learned counsels for the parties but has merely indicated them in order to show that this was not such a simple question as could have been disposed of.

13. In view of what has been discussed above, the impugned judgment is set aside and the case is remanded to the Punjab Labour Appellate Tribunal, Lahore, where the appeal against the Petitioners shall be deemed to be pending, who shall decide the same afresh and pass a speaking order after taking into consideration the points mentioned above.

(JAWAD HASSAN)
JUDGE

Announced in open Court on the _____ day of December 2016.

JUDGE